

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1-2	16CV294537	4 TH Street SJ vs Metro Eight Properties	Line 1—Plaintiff moves this court to assign Defendant Milpitas Villas judgment debtor rights to payments of rents due. In this case a court trial was held and a verdict in favor of Plaintiff was entered in favor of Plaintiff for a total amount of damages of \$406,718.90. The trial court’s judgment was affirmed by the court of appeals on March 19, 2026. Plaintiff is judgment creditor and sublessee under an existing sublease. None of balance has been paid off. Defendant Milpitas Villas submitted no objections to this motion. Under CCP 708.520(d), the court may assign right to payments to pay off judgment in full. Plaintiff’s motion to assign Defendant Milpitas Vista’s rights to past and future payments from to Plaintiff is GRANTED; Defendant Milpitas Vista is ordered restrained from encumbering or transferring any payments under this sublease until judgment is paid off. Line 2: Plaintiff moves this court to award attorney fees to Plaintiff. Plaintiff prevailed in its court trial and prevailed after Defendant appealed verdict. Plaintiff seeks costs of defending the appeal. No objection was filed by Defendant. Court finds attorney fees requested by Plaintiff of \$31,466.17 to be reasonable. Plaintiff’s motion for attorney fees in the amount of \$31,466.17 is GRANTED.
9:00 3	23CV422621	Michael Hertz vs. Mark Olivarez, et.al.	Plaintiff moves this court to discharge referee and deposit the pre-buy out common interest rental funds into the Court’s trust account. Defendant does not object to the discharge of referee. Plaintiff and Defendant entered into a stipulated agreement that the funds from a sale of a property would be held by a property manager who would be responsible for payouts. Some of the particular invoices are disputed. Thus Plaintiff’s motion to discharge referee is GRANTED. However, Plaintiff’s request to deposit the pre buyout common interest rental funds into the Court’s trust account is DENIED.
9:00 4	23CV425697	Lara McCabe vs. Santa Clara County	Defendant moves this court to dismiss the case under CCP 472(b). In this case, the trial court granted Defendant’s demurrer. The plaintiff successfully appealed the demurrer. Defendant argues that Plaintiff did not file its amended complaint within the 30 days deadline under CCP 472(b). Plaintiff persuasively argues that CCP 472b applies only when time to amend is given. In this case, the appellate opinion does not give any time for Plaintiff to amend. Defendant’s motion is DENIED.
9:00 5-7	23CV428070	“Janine” Chun Lu vs. Marc Goubert,et.al.	See below
9:00 8	24CV430815	Karen Briggs vs. Ford Motor Company	Plaintiff moves this court for attorney fees as the prevailing party. Defendant filed no objections to this motion. Plaintiff’s motion for attorney fees in the amount of 423,537.29 is GRANTED.
9:00 9-10	24CV436120	Kaelly Maycock vs. Matthew Santiago, et.al.	Defendant moves to quash Plaintiff’s deposition subpoena for Uber Technologies. This court finds that the subpoena is narrowly tailored to the relevant issues of the case. A stipulated protective order is in effect to protect privileged interests. Defendant’s motion to quash deposition subpoena is DENIED. Defendant moves to quash Plaintiff’s deposition subpoena for Lyft. This court finds that the subpoena is narrowly tailored to the relevant issues of the case. A stipulated protective order is in effect to protect privileged interests. Defendant’s motion to quash deposition subpoena for Lyft is DENIED.